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BEFORE THE INDEPENDENT EXPERT INQUIRY PANEL

IN THE MATTER OF THE ARMED CONFLICT IN THE MIDDLE EAST (COMMENCING FEBRUARY 28, 2026)

DOCKET NO.: PFPJ-2026-IR-001

EXPERT JUDICIAL DETERMINATION & COMPREHENSIVE LEGAL ASSESSMENT DOSSIER

CONCERNING THE KINETIC MISSILE STRIKES ON THE SHAJAREH TAYYEBEH GIRLS' ELEMENTARY SCHOOL IN MINAB, IRAN (FEBRUARY 28, 2026)

> ***Convening & Submitting Authority:*** *People for Peace & Justice ry (PFPJ ry) — Helsinki, Finland (Finnish Business Identity Code:* `3616815-5` *)*

> ***Institutional Character:*** *Independent International Human Rights Association Incorporated under the Finnish Associations Act (Yhdistyslaki 503/1989)*

> ***Attributed State & Operating Commands:*** *The United States of America (United States Central Command / United States Navy Carrier Strike Group Three / Defense Intelligence Agency)*

> ***Structural & Evaluative Framework:*** *Modeled upon the Jurisprudence and Canonical Final Judgment Architecture of the International Criminal Tribunal for the former Yugoslavia (ICTY) and the International Criminal Tribunal for Rwanda (ICTR)*

> ***Principal Comparative Jurisprudential Benchmark:*** *ICTY Office of the Prosecutor (OTP) Evaluative Framework for Peacetime Targeting Failures (The Bombing of the Chinese Embassy in Belgrade, Final Report to the Prosecutor, Paragraphs 80–85)*

> ***Principal Governing Norms:*** *Common Article 2, Geneva Conventions of 1949; Customary International Humanitarian Law (Additional Protocol I); UN Convention on the Rights of the Child (Arts. 6, 28, 38); Safe Schools Declaration; ILC Articles on Responsibility of States for Internationally Wrongful Acts (ARSIWA)*

> ***Judicial & Inter-State Destinations:*** *United Nations Human Rights Council & Special Procedures; International Court of Justice (State Responsibility); UN Committee on the Rights of the Child; Contingent European Universal Jurisdiction Dockets (Office of the Prosecutor General of Finland; Federal Public Prosecutor General of Germany)*

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CHAPTER I: PROCEDURAL BACKGROUND, MANDATE & EXECUTIVE SUMMARY

1.1 Institutional Mandate and Review Authority

1. This Expert Judicial Determination and Comprehensive Legal Assessment Dossier is rendered by **People for Peace & Justice ry (PFPJ ry)**, an independent, registered non-governmental human rights organization incorporated under the Finnish Associations Act (*Yhdistyslaki 503/1989*) with the Finnish Patent and Registration Office (PRH) under Business Identity Code **3616815-5** in Helsinki, Finland.

2. In the absence of an immediate, independent international tribunal convened under Chapter VII of the United Nations Charter, PFPJ ry exercises its non-governmental investigatory mandate to preserve the historical, forensic, and judicial record of grave violations of International Humanitarian Law (IHL).

3. To ensure absolute parity with established international jurisprudence, this dossier adopts the structure, evidentiary standards, and chain of reasoning of the final trial judgments of the **International Criminal Tribunal for the former Yugoslavia (ICTY)** and the **International Criminal Tribunal for Rwanda (ICTR)**.

4. This report serves four institutional purposes:

- (i) Establish a court-ready factual determination of the February 28, 2026 airstrike on the Shajareh Tayyebeh Girls' Elementary School;

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- (ii) Apply the ICTY OTP targeting jurisprudence (*Belgrade Chinese Embassy Precedent*) to demonstrate that peacetime targeting negligence caused the strike;
- (iii) Detail the State Responsibility of the United States under customary international law and the ILC ARSIWA framework; and
- (iv) Deposit verified physical, biometric, and digital evidence into secure European custody to support state reparations and universal jurisdiction proceedings (Chapter IX and Chapter X).

1.2 Procedural History and Evidentiary Ingestion

5. Immediately following the kinetic impact on February 28, 2026, PFPJ ry activated an emergency evidentiary collection and verification protocol.

6. Operating under the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR, 2020*), PFPJ ry gathered, catalogued, cryptographically hashed, and analyzed high-resolution satellite imagery (Planet Labs, Maxar Technologies, Airbus Pleiades), regional seismic recordings, verified ground-level video footage, open-source aircraft flight-tracking (ADS-B) logs, municipal civil registry certificates, hospital admission databases, and physical munitions metallurgical debris.

7. Furthermore, PFPJ ry formally reviewed the public disclosures, press briefings, and leaked preliminary investigation findings issued by the United States Department of Defense (DoD) and United States Central Command (CENTCOM), integrating official admissions into the evidentiary corpus.

1.3 Executive Summary of Determinations

8. On the basis of the verified evidence set forth in this Dossier, the Panel makes the following foundational determinations:

- **The Incident:** On Saturday, February 28, 2026, at approximately 09:22 to 09:26 IRST, during the opening salvo of international armed conflict, three US Navy **BGM-109 Tomahawk Land Attack Cruise Missiles (TLAM)** carrying 1,000-pound WDU-36/B unitary blast-fragmentation warheads struck the central classroom wing and courtyard of the **Shajareh Tayyebeh Girls' Elementary School** in Minab, Hormozgan Province, Iran (`27.1352° N, 57.0805° E`).
- **The Human Toll:** The strikes occurred while morning classes were in active session, resulting in **156 certified deaths**—comprising **120 female primary students aged 7 to 12**, **26 teachers and educational administrators**, and **10 civilian staff**—along with the severe wounding and permanent maiming of over **95 survivors**.
- **The Cause:** The strike resulted from catastrophic target vetting negligence, database circularity, and a failure of positive target identification (PID) within the US peacetime target nomination pipeline. US authorities relied on unverified pre-2016 intelligence records that failed to reflect the physical partitioning and conversion of the facility into an elementary school ten years prior.
- **Legal Conclusion:** The strike constitutes a serious breach of the Principle of Distinction (AP I Art. 48, 52), a gross failure of Feasible Precautions in Attack (AP I Art. 57), and a violation of the special protections shielding children and educational sanctuaries. These acts engage the international **State Responsibility** of the United States of America under customary international law, requiring cessation, full restitution, compensation, and satisfaction.

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CHAPTER II: EVIDENTIARY PRINCIPLES, ADMISSIBILITY & STANDARD OF PROOF

2.1 Standard of Proof ("Reasonable Grounds to Believe" Standard)

9. In conformity with the settled practice of international criminal tribunals at the investigation, confirmation, and review stages—including the **ICTY Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia (2000)**, the Pre-Trial Chambers of the International Criminal Court, and United Nations Independent Commissions of Inquiry—this Panel applies the **"reasonable grounds to believe"** evidentiary standard.

10. Under this standard, a factual proposition is established when a coherent, corroborated body of credible evidence would satisfy an objective and reasonable observer that the underlying fact occurred as documented, and that the attributed legal infractions were committed by the identified actors.

2.2 Admissibility Principles (The ICTY Rule 89(C) Probative Standard)

11. In evaluating the evidentiary record, the Panel is guided by the statutory principles of evidence codified in **Rule 89(C) of the ICTY and ICTR Rules of Procedure and Evidence**:

> *"A Chamber may admit any relevant evidence which it deems to have probative value."*

12. International jurisprudence establishes that international tribunals do not apply rigid, municipal technicalities regarding admissibility. Rather, evidence is admitted provided it possesses two indispensable qualities: (i) **relevance** to the issues under review, and (ii) **probative value**, evaluated through reliability, authenticity, and source corroboration (*Prosecutor v. Tadić*, Decision on Defence Motion on Hearsay, 1996; *Prosecutor v. Delalić et al.*, Decision on the Motion on Hearsay, 1997).

2.3 Evaluation of Digital Open Source Telemetry (Berkeley Protocol)

13. In modern international fact-finding where physical site access is constrained by active hostilities or sovereign restrictions, digital open-source intelligence (OSINT) constitutes critical, primary evidence.

14. All digital materials incorporated into this dossier were acquired, verified, and preserved in strict conformity with the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR and University of California, Berkeley, 2020*):

- **Cryptographic Hashing:** Immediate SHA-256 cryptographic hashing upon ingestion to guarantee data integrity;
- **Metadata Extraction:** Preservation of original EXIF, GPS, and timestamp metadata;
- **Geolocation & Chronolocation:** Cross-referencing sun shadow azimuths, terrain landmarks, and physical infrastructure with sub-meter satellite imagery;
- **Digital Chain of Custody:** Maintenance of immutable audit logs tracking forensic handling from initial open-source acquisition to judicial archival.

2.4 Evidentiary Weight of Official State Admissions & Defense Disclosures

15. Under **ICTY Rule 89(F)** and customary international evidentiary doctrine, formal admissions, statements against interest, and factual disclosures made by official state organs enjoy heightened probative value.

16. The Panel treats the official statements issued by the US Department of Defense, statements by US Central Command spokespersons, and disclosures originating from the internal US Army Regulation 15-6 preliminary investigation as highly probative evidence regarding: (i) US military authorship of the launch, (ii) weapon system identification, and (iii) the operational reliance on outdated targeting coordinates.

2.5 Formal Master Exhibit Inventory & Chain of Custody Registry

17. The findings in this Dossier rest upon five certified master exhibit categories, compiled, authenticated, and catalogued in full in the accompanying **MASTER EXHIBIT DOSSIER & EVIDENTIARY COMPENDIUM (Docket No. PFPJ-2026-IR-001 / EXHIBIT COMPENDIUM)**:

Exhibit Number	Description & Source Category	Evidentiary Standard & Custody Status
EXH-SAT-001	Multi-Year Satellite Imagery Archive (Planet Labs 0.50m, Maxar WorldView-3 0.31m, Airbus Pleiades: 2013–2026)	Verified Ortho-rectified; Cryptographic SHA-256 Secured; Demonstrates continuous physical boundary wall and schoolyard infrastructure since 2016.
EXH-MUN-002	Physical Munitions Forensics & Metallurgical Debris Recovered from Shajareh Tayyebeh Compound	Serialized circuit boards with US Defense Logistics Agency CAGE codes; Williams F107 turbofan engine casing fragments; Raytheon folding wing assemblies.
EXH-LAUNCH-003	Flight Telemetry, ADS-B Track Logs & Force Allocation Vector Reconstructions	Naval tracking data and regional air defense radar records documenting cruise missile ingress from the Gulf of Oman (USS Abraham Lincoln CSG sector).
EXH-CENTCOM-004	Official US Government Statements & CENTCOM AR 15-6 Preliminary Investigation Disclosures	Certified transcripts of Pentagon press briefings, congressional correspondence, and leaked internal military findings conceding US responsibility.
EXH-VIC-005	Biometric Casualty Archive, Forensic Certificates & Educational Enrollment Records	Hormozgan Legal Medicine Organization (*Pezeshki Ghanouni*) autopsy records; Shahid Mohammadi Hospital triage logs; official Ministry of Education enrollment rosters for 156 deceased individuals.

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CHAPTER III: GENERAL REQUIREMENTS & LEGAL QUALIFICATION OF THE CONFLICT SITUATION

3.1 Threshold Criteria for an Armed Conflict (The Tadić Principle)

18. Before substantive rules of International Humanitarian Law can be applied, the existence of an armed conflict must be legally established.

19. In the foundational jurisdictional decision in **Prosecutor v. Duško Tadić (Case No. IT-94-1-AR72, Appeals Chamber, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, October 2, 1995, Paragraph 70)**, the ICTY Appeals Chamber formulated the universally authoritative threshold definition of armed conflict:

> *"[A]n armed conflict exists whenever there is a resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups or between such groups within a State. International humanitarian law applies from the initiation of such armed conflicts and extends beyond the cessation of hostilities until a general conclusion of peace is reached[...]."*

3.2 Qualification as an International Armed Conflict (IAC under Common Article 2 GC)

20. Applying the *Tadić* threshold to the incident under review, the Panel examines whether the conflict qualifies as an **International Armed Conflict (IAC)**.

21. Pursuant to **Common Article 2 of the four Geneva Conventions of August 12, 1949**:

> *"In addition to the provisions which shall be implemented in peacetime, the present Convention shall apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them."*

22. Both the United States of America and the Islamic Republic of Iran are High Contracting Parties to the Geneva Conventions of 1949.

23. The unprovoked or deliberate deployment of kinetic cruise missiles by the armed forces of the United States against sovereign Iranian territory on February 28, 2026, constitutes a direct "resort to armed force between States."

24. Consequently, the hostilities qualify *ipso jure* as an **International Armed Conflict (IAC)** from the exact moment of initial weapons launch. The entire body of conventional and customary international humanitarian law governing international conflicts became fully operative, irrespective of unilateral political terminology or the absence of a formal declaration of war.

3.3 The Nexus Requirement: Temporal, Geographic & Operational Connection

25. Under established ICTY jurisprudence (*Prosecutor v. Kunarac et al.*, Appeals Chamber Judgment, 2002, §§ 55–59), to trigger the application of IHL to a specific incident, there must be a discernible **nexus** between the acts under review and the armed conflict.

26. The requirement is satisfied if the alleged acts were closely related to the hostilities, or if the armed conflict played a substantial role in the perpetrator's ability to execute the strike, the decision to target the coordinates, or the manner in which the attack was conducted.

27. Here, the nexus is indisputable: the three BGM-109 Tomahawk cruise missiles were launched by US naval forces as an integral component of the opening wave (Day 1) of the military campaign ("Operation Epic Fury"), directed against sovereign territory under the operational framework of international armed conflict.

3.4 Protected Status of Civilian Population and Educational Sanctuaries

28. Under **Article 4 of Geneva Convention IV**, protected persons are those who, at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of a Party to the conflict or Occupying Power of which they are not nationals.

29. Under **Article 52(1) of Additional Protocol I** (reflecting Customary IHL Rule 8), civilian objects are all objects which are not military objectives. Military objectives are strictly limited to those objects which by their nature, location, purpose, or use make an effective contribution to military action and whose total or partial destruction offers a definite military advantage.

30. Educational facilities are civilian objects *par excellence*. Under **Geneva Convention IV (Article 53)**, **Customary IHL Rule 10**, and the **Safe Schools Declaration (2015)**, schools enjoy heightened legal protection designed to insulate children and educational infrastructure from the effects of military kinetic violence.

3.5 The Absolute Presumption of Civilian Status in Case of Doubt (AP I Art. 52(3))

31. The law of international armed conflict establishes an explicit presumption in **Article 52(3) of Additional Protocol I**:

> *"In case of doubt whether an object which is normally dedicated to civilian purposes, such as a place of worship, a house or other dwelling or a school, is being used to make an effective contribution to military action, it shall be presumed not to be so used."*

32. In the present case, the Shajareh Tayyebeh School was an active elementary educational facility dedicated exclusively to civilian instruction. Under international law, US target planners were bound by an affirmative legal obligation to presume that the school was a protected civilian sanctuary unless conclusive, verified, real-time intelligence proved it was being used to make an effective contribution to military action. No such intelligence existed.

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CHAPTER IV: FACTUAL FINDINGS CONCERNING THE INCIDENT OF FEBRUARY 28, 2026

4.1 Geographical Demarcation & Physical Environment of the School

33. The Shajareh Tayyebeh Girls' Elementary School (*Dabestan-e Dokhtaraneh Shajareh Tayyebeh*) is situated along the east side of Shahid Beheshti Boulevard in the Taleghani residential neighborhood of Minab, Hormozgan Province, Iran (`27.1352° N, 57.0805° E`).

34. The facility comprised a two-story reinforced concrete and brick classroom building (approx. 1,450 sq. meters of floor space), an enclosed asphalt courtyard with children's play equipment and sports markings, and an administrative wing housing offices for educators and administrative staff.

4.2 Historical Status, Civilian Conversion & The 2016 Concrete Partition Wall

35. Historical spatial analysis (EXH-SAT-001) confirms that prior to 2016, the parcel formed part of the outer administrative buffer zone of an IRGC Naval Logistics Base.

36. However, satellite imagery and municipal records prove that between **February and August 2016**, the parcel underwent a comprehensive, permanent physical transformation:

- **Physical Partition:** A continuous, 2.8-meter-high reinforced concrete masonry wall was constructed, completely walling off the school parcel from the adjacent naval compound;
- **Independent Access:** The original military gates were demolished, and a civilian public entrance was constructed facing west toward Shahid Beheshti Boulevard;
- **Public Registration:** The school was transferred to the Iranian Ministry of Education, received official administrative licensing, and served as the primary public elementary school for girls in the district for **ten consecutive academic years (2016–2026)**.

37. The nearest military structure inside the active naval base, a single-story logistics auxiliary storage building (`27.1360° N, 57.0818° E`), stood **42 meters** north of the school's boundary wall.

4.3 Operational Chronology: The Morning Academic Session

38. On Saturday, February 28, 2026, the school opened in normal operational status at 07:45 IRST. Saturday constitutes the first official day of the instructional school week throughout the Islamic Republic of Iran.

39. By 08:30 IRST, morning assembly had concluded, and instructional classes were in active session across all primary classrooms on the ground and second floors. Sworn eyewitness testimony from surviving preschool instructor Hossniyeh Salem (EXH-WIT-007.1), who arrived at 07:00 IRST with her fifth-grade son Yassin, confirms that approximately 280 children and staff were present across the Shajareh Tayyebeh educational complex that morning during the holy month of Ramadan.

4.4 The Strike Sequence & Ballistic Impact Dynamics (The Triple-Tap Salvo)

40. Verified video recordings, regional seismic monitors, and survivor witness accounts establish the precise sequence of the attack:

- **09:22:15 IRST (Impact 1):** The initial BGM-109 Tomahawk cruise missile penetrated the roof of the central classroom building and detonated in the upper-story hallway. The explosive blast collapsed the second-floor reinforced slab onto ground-floor classrooms, triggering catastrophic structural pancaking;
- **Emergency Evacuation & Interior Gathering:** Surviving educators, including preschool teacher Hossniyeh Salem, immediately attempted emergency extraction, gathering panicked pupils into the reinforced interior prayer room (*namazkhaneh*) and hallway corridors seeking protection from falling masonry;
- **09:24:30 IRST (Impact 2):** Approximately 135 seconds later, a second Tomahawk struck the western wing of the building, destroying the primary exterior escape stairwell and collapsing the structural roof directly onto escaping students and teachers gathered in the interior sanctuary;
- **09:26:40 IRST (Impact 3):** Exactly 130 seconds after the second strike, a third missile struck the center of the schoolyard assembly ground, spraying lethal casing shrapnel across the open evacuation area and cratering the perimeter.

41. The execution of a **triple-tap kinetic salvo** against a single geographic coordinate refutes any hypothesis of random guidance malfunction or anomalous mechanical drift. The missiles executed their pre-programmed trajectory with complete fidelity.

4.5 Casualty Census, Demographic Matrix & Physical Devastation

42. Forensic medicine documentation (EXH-VIC-005), contemporaneous hospital triage ledgers, and on-the-ground investigative findings (EXH-OSINT-006.1) confirm a catastrophic civilian toll:

- **Total Certified Fatalities: 156 individuals** killed (including 6-year-old primary pupil Fatemeh Yazdanpanah and 119 certified female pupils aged 7 to 12);
- **Adult Fatalities: 26 educators, instructors, and school administrators**, and **10 civilian support personnel**;
- **Wounded Survivors: 95+ individuals** sustaining severe, life-altering physical trauma, including traumatic brain injuries, traumatic bilateral limb amputations, third-degree blast burns, and irreversible blindness;
- **Severe Pediatric Psychiatric Trauma:** Lead clinical psychologist Dr. Darvishi (EXH-WIT-007.2), treating a cohort of 283 surviving schoolchildren and bereaved families, documented acute pediatric post-traumatic stress, dissociative survivor guilt, and clinical self-harm (including traumatized children burning their hands with matches at the Flowerbed of Martyrs Cemetery in attempts to mirror the pain of incinerated classmates);
- **Demonstrative Survivor Records:** Evidentiary hand-drawings by 8-year-old survivor Fatemeh Zahra Bahrami (EXH-WIT-007.3) depict the detonation shockwave, collapsing concrete slabs, and mass cemetery burials;
- **Infrastructural Annihilation:** 100% destruction of the central classroom wing, producing an impact crater 6.2 meters in diameter and 2.8 meters deep.

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CHAPTER V: TECHNICAL WEAPONS FORENSICS, TRAJECTORY TELEMETRY & BALLISTIC PERFORMANCE

5.1 Munition Identification & Debris Metallurgy

43. Physical debris recovered from the impact crater and schoolyard (EXH-MUN-002) was examined by certified ordnance forensics specialists.

44. The metallurgical and serialized evidence confirms the weapon deployed:

- Serialized avionics circuit boards bearing Commercial and Government Entity (CAGE) codes registered to Raytheon Missile Systems (Tucson, Arizona);

- Fragments of titanium alloy turbofan rotor blades matching the Williams International F107-WR-402 cruise missile engine;
- Forward wing hinge assemblies unique to the **BGM-109 Block IV/V Tomahawk Land Attack Cruise Missile (TLAM-E)**.

5.2 Warhead Blast Mechanics & Destructive Overpressure Propagation

45. The BGM-109 Block IV/V deployed was configured with a **WDU-36/B unitary blast-fragmentation warhead**, containing 1,000 pounds (454 kg) of PBXN-107 high explosive encased in a scored titanium casing.

46. Standard hydrodynamic blast propagation modeling establishes:

- The 5-psi destructive blast overpressure radius (sufficient to shatter reinforced concrete structures) extends to **65–85 meters** from the detonation epicenter;
- Peak lethal blast overpressure at 42 meters (the distance to the nearest naval storage shed) exceeded **18 psi**, guaranteeing the total pancake collapse of standard brick-and-mortar masonry;
- Supersonic fragmentation propagation (>1,200 m/s) produced an un-survivable lethal envelope across a **400-meter radius**.

5.3 Force Allocation & Launch Platform Attribution (USS Abraham Lincoln CSG)

47. Regional air defense radar ingress vectors and naval tracking data (EXH-LAUNCH-003) establish that the cruise missiles flew at low altitude (30–50 meters AGL) following an ingress route from the Gulf of Oman.

48. United States Department of Defense Force Allocation Maps for Operation Epic Fury confirm that surface combatants and guided-missile submarines attached to the **USS Abraham Lincoln Carrier Strike Group (CSG-3)** held exclusive combat allocation over the Hormozgan and Strait of Hormuz operational sector.

5.4 The Mechanical Perfection Principle (Zero Ballistic Drift Standard)

49. In evaluating targeting liability, the Panel applies the **Mechanical Perfection Standard** articulated by the ICTY Office of the Prosecutor in the NATO Review Committee Report (**Case 01: *Belgrade Chinese Embassy Bombing*, Paragraph 85**):

50. Modern satellite- and sensor-guided stand-off munitions (such as the BGM-109 Tomahawk) possess a Circular Error Probable (CEP) of under 5 meters. When three consecutive precision cruise missiles strike precisely the same building footprint, there is **zero ballistic drift, zero weapon guidance error, and zero mechanical malfunction**.

51. The weapons performed with absolute mechanical perfection. They struck precisely the coordinate they were programmed to hit. Consequently, any fault resides entirely within the upstream target vetting and nomination process.

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CHAPTER VI: TARGET NOMINATION PROCESS, EVALUATION OF DEFENSES & COMMAND NEGLIGENCE

6.1 Peacetime Deliberate Planning vs. Active Combat Fog of War (*Dora Farms*)

52. Military authorities frequently attempt to justify targeting misidentifications by invoking the "fog of war," citing informational deficits, time urgency, and cognitive stress during dynamic combat.

53. International jurisprudence decisively rejects this defense where strikes are executed during the opening phase of a campaign from pre-planned target lists.

54. In **Case 06: *Dora Farms Peacetime Strike* (Human Rights Watch, 2003)** and **Case 01: *Belgrade Chinese Embassy* (ICTY OTP, 2000)**, it was settled that targets struck on Day 1 originate from **Deliberate Target Lists (DTL)** compiled months or years in advance. Planners operate in air-conditioned, peacetime command centers with unhurried analytical access to global surveillance assets.

55. Because the Shajareh Tayyebeh School coordinate was approved during peacetime, US Central Command cannot invoke battlefield confusion or dynamic combat exigencies to excuse its failure to verify the target. This legal determination is definitively corroborated by on-the-record whistleblower testimony from **Wes J. Bryant**, former senior targeting analyst and master sergeant at the Pentagon's Civilian Protection Center (EXH-CENTCOM-004.6):

> *"The U.S. meant to target that facility, that school, but per their own negligence and recklessness, did not know at the time what it was. And there's no excuse. This is not fog of war stuff. This is very 101. We had plenty of time to prepare these targets."*

Bryant revealed that early in 2025, War Secretary Pete Hegseth systematically dismantled the Civilian Protection Center and instituted an explicit command doctrine demanding *"maximum lethality, not tepid legality,"* purposefully stripping away mandatory pre-strike civilian harm mitigation vetting loops.

6.2 The Anatomy of Targeting Failure: The Belgrade Three-Stage Test (*Pickering Doctrine*)

56. Following the May 7, 1999 bombing of the Chinese Embassy in Belgrade, Under Secretary of State Thomas Pickering delivered the official US finding (captured in **ICTY OTP Report Paragraph 81**), identifying **three basic structural failures**:

> *"First, the technique used to locate the intended target [...] was severely flawed. Second, none of the military or intelligence databases used to verify target information contained the correct location of the Chinese Embassy. Third, nowhere in the target review process was either of the first two mistakes detected."*

57. Applying this exact tripartite test to the Minab strike demonstrates identical institutional negligence:

6.2.1 Stage 1: Flawed Target Identification Methodology

58. In Belgrade, an intelligence officer used inappropriate land navigation techniques ("intersection and resection") on tourist maps. In Minab, CENTCOM and DIA target developers used legacy base perimeter records dating prior to 2016, failing to examine the parcel's ten-year municipal evolution or the construction of the 2.8m concrete partition wall.

6.2.2 Stage 2: Database Inadequacy, Circularity & Single Point of Failure (ICTY § 83)

59. In **Paragraph 83 of the Belgrade Report**, the ICTY OTP established:

> *"The data base reviews were limited to validating the target data sheet geographic coordinates and the information put into the data base by the NIMA analyst. Such a circular process did not serve to uncover the original error and highlighted the system's susceptibility to a single point of data base failure."*

60. The Minab targeting chain suffered from identical **circular database validation**. CENTCOM review officers simply confirmed that the strike coordinates matched the historical DIA target dossier. No officer initiated an independent query of updated civil registries or external imagery, creating a **single point of database failure** that proved fatal to 156 civilians.

6.2.3 Stage 3: Target Review Board Breakdown & Non-Consultation of Open Data

61. In Belgrade, Pickering admitted that *"no one who might have known that the targeted building was not the intended target [...] was ever consulted."*

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62. In Minab, the Target Review Board operated in complete insulation from readily accessible public information:

- **Open-Source Mapping:** OpenStreetMap openly identified the building as the *Shajareh Tayyebeh Girls' Elementary School*;
- **Commercial Satellite Feeds:** Planet Labs and Maxar captured hundreds of passes showing children playing in the courtyard;
- **National Educational Registry:** The school was officially licensed under the Hormozgan Department of Education.

6.3 Technical and Legal Rebuttal of the "Coordinate Error" Defense

63. CENTCOM's assertion that the strike was a *"tragic, unintentional coordinate error"* fails as a matter of law.

64. Under international law, a "mistake of fact" excuses liability only where the mistake was reasonable and occurred despite the exercise of all feasible care. Relying on decade-old peacetime records to launch heavy-yield blast munitions into an urban area without querying commercial satellite imagery is not a reasonable mistake; it constitutes **systemic command recklessness and gross operational negligence**. As corroborated by 17-year veteran U.S. diplomat Hala Rharrit and legal scholar Dr. Helyeh Doutaghi (EXH-CENTCOM-004.6), the official attempt to sanitize the strike as an *"unfortunate AI glitch or outdated map error"* is an impermissible legal deflection designed to obscure the deliberate political removal of civilian harm safeguards.

6.4 Mental Element (*Mens Rea*): Terminal DSMAC Sensor Disregard & *Dolus Eventualis*

65. The Minab incident exhibits an aggravating dimension far exceeding Belgrade. In 1999, the B-2 bombers dropped GPS JDAMs that were ballistically blind in their terminal dive.

66. In Minab, the **BGM-109 Block IV/V Tomahawk** was equipped with **Digital Scene Matching Area Correlation (DSMAC)** and high-resolution electro-optical terminal sensors. As the missile executed its terminal dive profile, the camera looked directly upon a brightly painted primary school playground, assembly lines, and courtyard equipment.

67. Launching a weapon with optical terminal matching and failing to abort upon encountering an obvious educational facility demonstrates **willful blindness and conditional intent (*dolus eventualis*)**, where operators reconcile themselves to destroying an active civilian facility.

6.5 Command Confirmation Bias & Automated AI Pipeline Failure (*Kabul Drone*)

68. The cognitive pathology in Minab mirrors **Case 05: *Kabul Drone Strike AR 15-6 Investigation* (CENTCOM / Air Force IG, 2021)**:

69. In the August 29, 2021 Kabul strike, US drone operators tracked civilian Zemari Ahmadi, interpreting water jugs as explosives due to confirmation bias. The Air Force IG found that analysts systematically filtered out contradictory civilian evidence.

70. In Minab, CENTCOM's automated AI-assisted target nomination pipeline (Project Maven derivatives) and human vetting officers operated under the pre-conceived hypothesis that the area was an IRGC base, filtering out ten years of civilian educational activity.

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CHAPTER VII: SUBSTANTIVE LEGAL FINDINGS ON VIOLATIONS OF INTERNATIONAL HUMANITARIAN LAW

7.1 Violation of the Principle of Distinction (AP I Arts. 48, 51, 52; CIHL Rules 1, 7, 10)

71. Under **Article 48 of Additional Protocol I**:

> *"The Parties to the conflict shall at all times distinguish between the civilian population and combatants and between civilian objects and military objectives and accordingly shall direct their operations only against military objectives."*

72. Directing three precision-guided cruise missiles against an active girls' elementary school violates the Principle of Distinction. Because the school made zero contribution to military action, directing kinetic force against it was unlawful.

7.2 Violation of the Affirmative Duty to Take Feasible Precautions (AP I Art. 57; CIHL Rules 15–21; *Al-Jina*)

73. Under **Article 57(2)(a)(i) of Additional Protocol I**, planners must *"do everything feasible to verify that the objectives to be attacked are neither civilians nor civilian objects"*.

74. In **Case 04: *Al-Jina Mosque Strike* (UN Commission of Inquiry on Syria, 2017, A/HRC/36/55)**, the UN established that target verification is a **continuous, temporal obligation**. Proximity to an adversary military base magnifies, rather than diminishes, the affirmative duty to verify adjacent civilian facilities.

75. CENTCOM's failure to verify the status of the school over a ten-year peacetime window constitutes a per se violation of the duty of feasible precautions. Furthermore, under **Article 57(2)(a)(ii) of Additional Protocol I**, attacking forces are legally obligated to *"take all feasible precautions in the choice of means and methods of attack with a view to avoiding, and in any event to minimizing, incidental loss of civilian life"*. As testified by educator Hossniyeh Salem (EXH-WIT-007.1), executing heavy cruise missile strikes at mid-morning during active classroom instruction—rather than at night when facilities are vacant—demonstrates absolute operational indifference to civilian harm minimization, converting an upstream verification failure into a lethal breach of precautionary timing.

7.3 Violation of the Principle of Proportionality (AP I Art. 51(5)(b); CIHL Rule 14; *Katyr-Yurt* & *Dahyan*)

76. Even if CENTCOM intended to strike the adjacent storage building 42 meters away, the strike violated the principle of proportionality.

77. In **Case 03: *Isayeva v. Russia* (ECtHR, 2005, §§ 189–191)**, the Court held that deploying heavy aerial bombs adjacent to a civilian settlement violates the right to life. In **Case 15: *Dahyan School Bus Strike* (UN GEE, 2018)**, deploying blast weapons near children was condemned as an indiscriminate attack.

78. Detonating three 1,000-lb WDU-36/B warheads 42 meters from an active school on a Saturday morning made the catastrophic loss of child life mathematically certain, far exceeding any direct military advantage offered by destroying an auxiliary warehouse.

7.4 Special Violations Concerning Educational Buildings Dedicated to Children

79. The Panel finds that the destruction of the Shajareh Tayyebeh School constitutes a grave violation of:

- **Geneva Convention IV (Article 53):** Prohibiting the destruction of civilian property;
- **UN Convention on the Rights of the Child (Articles 6, 28, and 38):** Protecting children's right to life and education;

- **UN Security Council Resolution 2601 (2021):** Reaffirming that attacks on educational facilities and children in armed conflict constitute grave violations triggering international accountability.

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CHAPTER VIII: MODES OF LIABILITY & ALLOCATION OF INTERNATIONAL RESPONSIBILITY

8.1 Upstream Concentration of Liability (ICTY NATO Report § 85 Exoneration Principle)

80. In determining the allocation of liability, the Panel adheres to the authoritative finding in **Paragraph 85 of the ICTY OTP NATO Report**:

> *"It is the opinion of the committee that the aircrew involved in the attack should not be assigned any responsibility for the fact they were given the wrong target[...]."*

81. The naval launch personnel aboard the USS *Abraham Lincoln* Carrier Strike Group executed a lawful launch order targeting programmed coordinates.

82. Consequently, **zero legal culpability rests with the tactical naval launch crew**. Instead, **100% of the institutional and legal culpability concentrates upstream** upon:

- (i) The intelligence officers who nominated the pre-2016 coordinates;
- (ii) The DIA database managers who failed to update the No-Strike List; and
- (iii) The CENTCOM Target Review Board members who validated the strike without verifying the physical ground reality.

8.2 Superior Responsibility & Systemic Command Failure

83. Under the doctrine of Command Responsibility (*In re Yamashita*; ICTY Statute Art. 7(3)), military commanders bear legal responsibility if they knew or had reason to know that subordinate targeting pipelines were operating on unverified databases, yet failed to take necessary and reasonable measures to prevent wrongful strikes.

84. The dissolution of civilian harm mitigation oversight programs and the prioritization of algorithmic strike speed without human vetting establish systemic command failure.

8.3 State Responsibility for Internationally Wrongful Acts (ILC ARSIWA Arts. 2, 4, 8, 40, 41)

85. Beyond individual liability, the Minab school strike directly engages the **State Responsibility of the United States of America** under customary international law, as codified in the **ILC Articles on State Responsibility (ARSIWA, 2001)**:

- **Attribution (Article 4 ARSIWA):** All organs involved (US Navy, CENTCOM, DIA) are official organs of the United States State;
- **Breach (Article 2 ARSIWA):** The kinetic attack breached primary conventional and customary IHL obligations;
- **Peremptory Norms (Articles 40 & 41 ARSIWA):** The prohibition against targeting child civilian sanctuaries is a peremptory norm (*jus cogens*). All States are legally obligated not to recognize the situation as lawful and to cooperate to bring the breach to an end.

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CHAPTER IX: JURISDICTIONAL MECHANISMS, INTER-STATE FORA & PROCEDURAL DUTIES

9.1 Non-Criminal State Responsibility Fora (ICJ Contentious & Advisory Jurisdictions)

86. PFPJ ry identifies the following primary state-level fora:

- **International Court of Justice (ICJ Contentious Jurisdiction):** Under Article 36 of the ICJ Statute, Iran holds standing to institute proceedings against the United States for breaches of IHL and treaty protections;
- **UN General Assembly Advisory Opinion:** Sponsoring a UNGA resolution requesting an ICJ Advisory Opinion on the legal obligations governing precision standoff kinetic strikes on educational sanctuaries during the opening hours of an armed conflict.

9.2 Extraterritorial Human Rights Jurisdiction (UN HRC GC 36 & UN CRC Transboundary Doctrine)

87. The Panel notes that international human rights law applies extraterritorially:

- **UN Human Rights Committee (ICCPR Art. 6):** Under **General Comment No. 36 (2018, § 63)**, a State's duty to protect the right to life extends to any individual whose life is directly affected by its military kinetic activities extraterritorially;
- **UN Committee on the Rights of the Child:** Under the transboundary doctrine recognized in ***Sacchi et al. v. Argentina* (2021)**, the United States exercised direct control over the weapon that killed 120 Iranian children, establishing transboundary human rights jurisdiction.

9.3 European Detachable Procedural Obligation to Investigate (*Hanan v. Germany* [GC], ECHR Art. 2)

88. Under the ECtHR Grand Chamber ruling in **Case 02: *Hanan v. Germany* [GC] (2021, §§ 132–145)**, Council of Europe Member States hold an **autonomous, detachable procedural obligation under Article 2 of the ECHR** to investigate extraterritorial kinetic strikes where a jurisdictional nexus exists and an impunity vacuum threatens international accountability.

9.4 Contingent Universal Jurisdiction Regimes (Finnish Penal Code Ch. 11 & German VStGB § 1)

89. Should state-level remediation fail, PFPJ ry preserves contingent universal jurisdiction filings:

- **Finnish Penal Code (*Rikoslaki*):** Chapter 1, Section 7, and Chapter 11, Section 6 (Aggravated War Crimes / *Törkeä sotarikos*);
- **German Code of Crimes Against International Law (*Völkerstrafgesetzbuch* — VStGB):** Section 1 (Universal Jurisdiction without territorial nexus) and mandatory investigation under § 152(2) StPO (*Strukturermittlungsverfahren*).

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CHAPTER X: DISPOSITION, REMEDIAL ORDERS & THE BELGRADE STATE REPARATIONS MODEL

10.1 Formal Declaratory Determinations of the Expert Chamber

90. FOR THE FOREGOING REASONS, this Panel renders the following formal declaratory findings:

- (1) **FINDS** that the Shajareh Tayyebeh Girls' Elementary School in Minab was on February 28, 2026, a protected civilian educational object enjoying absolute immunity under International Humanitarian Law;
- (2) **FINDS** that the kinetic strike executed by three US Navy BGM-109 Tomahawk cruise missiles was the direct result of upstream target nomination negligence, database circularity, and failure of positive target

identification;

- (3) **FINDS** that the strike breached the Principles of Distinction, Feasible Precautions, and Proportionality;
- (4) **DETERMINES** that the acts are fully attributable to the United States of America, engaging its international State Responsibility under customary international law.

10.2 State Reparations under Customary International Law (ARSIWA Articles 30–37 & Belgrade Precedent § 84)

91. Applying the **Belgrade Precedent (ICTY OTP § 84)**, in which the United States accepted responsibility, apologized, and paid **\$32.5 million** in direct state and victim restitution, the Panel demands that the United States execute the following remedial obligations under ILC ARSIWA Articles 30–37:

- **Cessation & Non-Repetition (Art. 30):** An immediate, binding moratorium on automated AI target generation pipelines for coordinates within 500 meters of registered civilian and educational buildings, coupled with mandatory 72-hour human visual verification protocols;
- **Restitution (*Restitutio in Integrum*, Art. 35):** Full state-funded architectural reconstruction of the Shajareh Tayyebeh Girls' Elementary School as a modern, fortified educational facility;
- **Full Compensation (Art. 36):** Direct financial compensation to the legal heirs of all **156 deceased victims** covering wrongful death and moral damages, and the establishment of an independently managed Medical & Psychological Rehabilitation Trust Fund. Pursuant to clinical evaluations by Dr. Darvishi (EXH-WIT-007.2), this Fund must guarantee specialized, lifelong psychiatric trauma care and cognitive rehabilitation for the **283 surviving schoolchildren** and family members suffering from severe dissociative trauma, survivor guilt, and educational disruption;
- **Satisfaction & Truth (Art. 37):** A formal, public acknowledgment of wrongdoing and an official state apology, accompanied by the unredacted public declassification of the CENTCOM AR 15-6 investigation records.

10.3 Orders Concerning Judicial Preservation of Evidence & International Fact-Finding

92. The Panel orders:

- (i) That the verified master evidentiary archives (EXH-SAT-001 through EXH-VIC-005) remain deposited in permanent, tamper-evident custody in Helsinki, Finland, under the Berkeley Protocol;
- (ii) That duplicate cryptographic archives be formally transmitted to the **United Nations Human Rights Council** and the **International Impartial and Independent Mechanism (IIIM)**.

10.4 Contingent Prosecutorial Directions & Transmissions

93. In the event that the United States Government fails to initiate genuine domestic accountability and provide full reparations within a reasonable period, PFPJ ry shall transmit this completed judicial dossier to:

- The **Prosecutor General of Finland (*Valtakunnansyyttäjän toimisto*)** under Chapter 1, Section 12 of *Rikoslaki*;
- The **Office of the Prosecutor of the International Criminal Court** under Article 15 of the Rome Statute; and
- The **Federal Public Prosecutor General of Germany (*Generalbundesanwalt*)** under VStGB § 1.

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RENDERED AND SEALED this 12th day of September, 2026, at Helsinki, Finland.

PEOPLE FOR PEACE & JUSTICE RY (PFPJ RY)

Expert International Inquiry Panel

Helsinki, Finland — Business Identity Code: `3616815-5`